

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, STATE OF FLORIDA
Circuit Civil Division D**

**COLONIAL MANOR HOMEOWNERS'
ASSOCIATION INC.,
Plaintiff(s),**

v.

Case No.: 2022-CA-4348

**COLONIAL MANOR MHC
HOLDINGS LLC,
Defendant(s).**

**NOTICE OF NO RECORD ACTIVITY,
COURT'S MOTION TO DISMISS PURSUANT TO FLA. R. CIV. P. 1.240(e),
NOTICE OF EVIDENTIARY HEARING ON COURT'S MOTION TO DISMISS, AND
NOTICE OF CASE MANAGEMENT CONFERENCE**

THIS CAUSE is before the court on its own Motion to Dismiss, pursuant to Florida Rule of Civil Procedure 1.240(e). It appears on the face of the record that no activity by filing of pleadings, order of court, or otherwise has occurred for a period of 10 months immediately preceding the service of this notice and that no order staying the action has been issued and no stipulation for stay has been approved by the court.

Now, therefore, be it **ORDERED and ADJUDGED** that

1. If no record activity occurs within the 60 days¹ immediately following service of this Notice, and if no stay is issued or approved by the court prior to the expiration of such 60 day period, **THIS ACTION SHALL BE DISMISSED**, unless a party shows good cause in writing at least five (5) days before the hearing set herein why the action should remain pending.

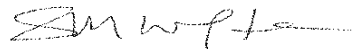
¹ See Fla. R. Gen. Prac. & Jud. Admin. 2.514(a)(2), Computing and Extending Time, regarding all deadlines set

forth in this Order.

Notice of No Record Activity, Court's Motion to Dismiss, and Notice of Hearing and Case Management Conference
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2. This Motion to Dismiss is set for an **EVIDENTIARY HEARING** on the **10th day of July, 2026, at 8:30 a.m.** in Courtroom 6E of the Manatee County Judicial Center, 1051 Manatee Avenue West, 6th Floor, Bradenton, Florida 34205. The attorneys of record for each party and any self-represented litigants shall appear **IN PERSON** for this hearing; no appearance by communication technology will be allowed, absent order of the court. *See* Fla. R. Gen. Prac. & Jud. Admin. 2.530.
3. If a notice of *lis pendens* has been filed in connection with a claim for affirmative relief that is dismissed by the court pursuant to Fla. R. Civ. P. 1.240(e), the notice of *lis pendens* connected with the dismissed claim is **AUTOMATICALLY DISSOLVED** at the same time, and this notice shall be recorded with the court's order of dismissal.
4. At the same time the Motion to Dismiss is heard, the court will conduct a **CASE MANAGEMENT CONFERENCE**, pursuant to Fla. R. Civ. P. 1.200(j), at which time, the court may enter a Case Management Order, pursuant to Fla. R. Civ. P. 1.200(d) and Fla. R. Gen. Prac. & Jud. Admin. 2.2520(a)(1)(B), to include a trial date, a pretrial conference date, and strict deadlines to complete pretrial discovery, motion practice, and otherwise prepare this matter for trial. If a party fails to appear, through an attorney or in proper person, at the Case Management Conference set herein, the court may dismiss this action, strike pleadings, limit proof or witnesses, or take any other appropriate action against a party failing to appear. *See* Fla. R. Civ. P. 1.200(j)(6).

DONE AND ORDERED at Bradenton, Manatee County, Florida, on the month, day, and year shown in the court's electronic signature below



Signature by Stephen Whyte, Circuit Judge, 04/14/2026 15:03:50 JAC:RAB

Stephen M. Whyte
Circuit Court Judge

Copies to all Attorneys of Record and Self-Represented Litigants:
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